

Patient Rights: Care in a Safe Setting

Ensuring a Secure Environment for All Patients

Regulation: 42 CFR §482.13(e)

POLICY OVERVIEW

Patients have a fundamental right to receive care in a safe setting, free from all forms of abuse, harassment, neglect, and exploitation. Hospitals must establish an environment that proactively prevents harm and responds swiftly to any safety concerns.

KEY REQUIREMENTS

1 Safe Environment Standards

The physical environment must be free from hazards that could cause patient harm. This includes proper maintenance, adequate lighting, secure fixtures, and removal of environmental risks.

2 Staff Conduct & Training

All staff, volunteers, and contractors must receive training on patient rights, professional boundaries, and prohibited behaviors. Zero-tolerance policies for abuse must be enforced.

3 Incident Reporting

All incidents, near-misses, and potential safety concerns must be reported through established channels. Retaliation against staff who report concerns in good faith is prohibited.

4 Monitoring & Oversight

Hospitals must have systems to monitor patient safety, including surveillance in appropriate areas, regular safety rounds, and mechanisms for patients to report concerns anonymously.

5 Response Protocols

Clearly defined protocols must exist for responding to safety incidents, including immediate patient protection, notification of appropriate parties, investigation, and corrective action.

COMPLIANCE NOTES

Leadership is responsible for creating a culture of safety. The Governing Body must ensure adequate resources are allocated to patient safety initiatives and that safety performance is monitored at the board level.

COMMON SURVEY CITATIONS

Frequently cited under §482.13(e)(1) – Right to safe care, and §482.13(e)(2) – Freedom from restraint/seclusion except when clinically necessary.